

MOTION FOR AN ORDER EXPUNGING THE RECORD OF CONVICTION

(Conviction Expungement, first-time drug offender, HRS 706-622.5(4))

CAPTION

Name of court that entered the judgment:

Circuit or division of that court:

STATE OF HAWAII, Plaintiff

v.

Kahealani Mahealani Kealohilani-Nakamura, Defendant

Case number:

1. THE RELIEF ASKED FOR

The defendant named in the caption above moves this court for an order expunging the record of the conviction entered in the case named above, under HRS 706-622.5(4).

2. THE AUTHORITY THIS MOTION RESTS ON

This motion is made under HRS 706-622.5(4), which provides for the expungement of a first-time drug offender conviction.

3. WHY THIS IS A MOTION AND NOT AN APPLICATION

Haw. R. Penal P. 47(a) provides:

"An application to the court for an order shall be by motion"

Haw. R. Penal P. 54(a) applies the Rules of Penal Procedure to all penal proceedings, and none of these provisions supplies its own procedure. This filing is therefore a motion in the existing penal case however the statute words the request.

4. THE FACTS THIS MOTION STATES

a. The defendant's full legal name is Kahealani Mahealani Kealohilani-Nakamura.

b. Offence of conviction:

c. Statute section of conviction:

d. Date of the judgment of conviction:

e. The conviction described above is a first-time drug offender conviction within HRS 706-622.5(4).

f. Whether this was the first drug offence:

g. Date the sentence was completed:

Each dotted blank above is read by the defendant from their own court record. The controlling record states that LegalEase does not obtain or review that record, and this build has written nothing into those blanks.

5. PRAYER FOR RELIEF

WHEREFORE the defendant asks this court to enter an order expunging the record of the conviction entered in the case named above, under HRS 706-622.5(4), and to furnish the defendant a signed copy of that order so that it may be attached to the Expungement Application submitted to the Hawaii Criminal Justice Data Center.

6. DECLARATION UNDER HAW. R. PENAL P. 47(d)

I declare under penalty of law that the statements made in this motion are true and correct.

Signature of the defendant:

Date beside the defendant's signature:

This declaration is made under Haw. R. Penal P. 47(d), which permits an unsworn declaration in lieu of an affidavit. This motion is therefore filed without a notarization.

7. CERTIFICATE OF SERVICE

Haw. R. Penal P. 49(a) provides:

"all written submissions to the court shall be served upon each of the parties promptly after filing"

Proof of service is required by Haw. R. Penal P. 49(c). I certify that a copy of this motion was served on the prosecuting attorney in this case as recorded below.

Name of the prosecuting office served:

Address where the copy was served:

Date the copy was served:

Manner of service:

Signature of the person who served the copy:

ORDER EXPUNGING THE RECORD OF CONVICTION

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CAPTION

Name of court that entered the judgment:

Circuit or division of that court:

STATE OF HAWAII, Plaintiff

v.

Kahealani Mahealani Kealohilani-Nakamura, Defendant

Case number:

The defendant's motion for an order expunging the record of the conviction entered in this case, made under HRS 706-622.5(4), came before the court.

FINDINGS

Findings, completed by the court:

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ORDER

IT IS ORDERED that the record of the conviction entered in this case against Kahealani Mahealani Kealohilani-Nakamura is expunged under HRS 706-622.5(4).

Date of the order, completed by the court:

Signature of the judge:

Printed name of the judge:

The defendant should ask the clerk for a signed copy of this order once it is entered. The stage-two Expungement Application in this packet cannot be submitted without a copy of it.

Expungement Application
Hawaii Criminal Justice Data Center, Department of the Attorney General

Complete this form in its entirety. **ILLEGIBLE or INCOMPLETE applications will be denied. The Expungement Certificate will be mailed to the address provided within 120 days, as authorized by HRS §831-3.2(a).** Due to the confidentiality of the arrest records, information, including the status of an application, will NOT be provided over the phone or through email. Please attach a copy of your valid official government-issued photo ID. **The fee for first-time expungement is \$35. Non-first-time expungements are \$50. The fee includes a non-refundable \$10 processing fee. A duplicate copy of an expungement certificate is \$20.00. Should your application be denied, the application fee, minus the non-refundable \$10 fee, will be refunded to you. Payment must be made by money order or cashier's check issued in the United States. Personal checks are not accepted.**

EXPUNGEMENT OF NON-CONVICTION INFORMATION

§831-3.2, Hawaii Revised Statutes, authorizes the expungement of non-conviction arrest information. Arrest records will be expunged from the arresting agency and the statewide repository of adult criminal history record information. Records may still be retained and made available by the courts. An expungement order shall NOT be issued:

- In the case of an arrest for a felony or misdemeanor where a conviction has not been obtained because of bail forfeiture;
- For a period of five (5) years after arrest or citation in the case of a petty misdemeanor or violation where conviction has not been obtained because of a bail forfeiture;
- In the case of an arrest of any person for any offense where conviction has not been obtained because the person has rendered prosecution impossible by absenting oneself from the jurisdiction;
- In the case of a person who was involuntarily hospitalized pursuant to HRS §706-607, or who was acquitted or had charges dismissed pursuant to Chapter 704 due to a physical or mental disease, disorder, or defect;
- For a period of one (1) year upon discharge of the defendant and dismissal of the charge against the defendant in the case of a Deferred Acceptance of Guilty Plea or Nolo Contendere Plea, in accordance with Chapter 853; and
- Pursuant to HRS §712-1200, for a period of three (3) years upon discharge of the defendant and dismissal of a HRS §712-1200 charge against the defendant in the case of a Deferred Acceptance of Guilty Plea or Nolo Contendere Plea.

EXPUNGEMENT OF CONVICTION FOR FIRST-TIME DRUG-RELATED/PROPERTY OFFENDERS & DUI <21

The court may grant an Order for the Expungement of Conviction for certain offenses and circumstances noted below. The conviction information is expunged only from the statewide repository of adult criminal history record information. Records may still be retained and made available by the arresting agency and the courts. Qualifying offenses include:

- §291E-0064(e) – Operating a vehicle after consuming a measurable amount of alcohol; persons under the age of twenty-one;
- §706-622.5 – Sentencing for first-time drug offender;
- §706-622.8 – First-time drug offender prior to 2004; and
- §706-622.9 – Sentencing for first-time property offender

If you are applying to have a conviction expunged, you MUST ATTACH A COPY OF THE COURT ORDER GRANTING THE EXPUNGEMENT. Applications without a copy of the court order granting the expungement of conviction will be denied.

Current Legal Name (Last, First, Middle): _____

Other Names Used: _____

Social Security Number: _____ **Date of Birth:** 1970-12-31 **Sex:** M _____ F _____
(SSN is optional; if provided, SSN will only be used to aid in verifying that the correct record is expunged)

Home Address: 1188 Kalanianaʻole Highway, Apartment 12-B, Kailua-Kona, HI 96740

Mailing Address: 1188 Kalanianaʻole Highway, Apartment 12-B, Kailua-Kona, HI 96740

Phone: 808-555-0199 **Email:** kahealani.kealohilani.nakamura@example-domain.org

Initial by all that apply:

	Expungement of Non-Conviction Information: In accordance with the provisions of HRS §831-3.2 , I hereby submit this written application to have my arrest record expunged for all qualifying alleged offense(s) for which no conviction has been secured, or for which I have found to be eligible for redress under Chapter 661B. Further, I hereby declare that I am not a fugitive from justice. If I am found to have no record of conviction, I also request the return of non-digitized fingerprints and non-digitized photographs .
	Expungement of First-time Drug Offender, Property Offender, and/or DUI <21: In accordance with the provisions of HRS §706-622.5, §706-622.8, §706-622.9, and §291E-0064(e) , I hereby submit this written application and a copy of my Court Order Granting the Expungement of Conviction for First-time Drug-related/Property Offender and/or Conviction for Driving Under the Influence; persons under the age of 21 to have my conviction expunged.

Before submitting the application, confirm these items are complete:

- | | |
|---|--|
| ☐ Signature of applicant | ☐ Copy of valid government-issued photo ID of applicant |
| ☐ Mailing Address | ☐ Court Order Granting Expungement, if applicable |
| ☐ Payment – Money Order or Cashier's Check issued in the United States payable to "State of Hawaii" | |

(First-time Expungement: \$35; Non-First-time Expungement: \$50; Duplicate Copy-Certificate: \$20)

LEAVE BLANK; HCJDC USE ONLY

Signature

Date

Submit completed application along with a self-addressed stamped envelope to:
Hawaii Criminal Justice Data Center, Attn: Expungement
465 South King Street, Room 102
Honolulu, HI 96813